

## M/s Liladhar Tularam Ice Factory v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 September 2018 · Writ-C No. 9064 of 2012 · **Writ dismissed for want of prosecution; interim order discharged.**

### HEADNOTE

After acquittal in a 2000 checking case, the consumer sought restoration and refund under clause 8.2(x) of the U.P. Electricity Supply Code, 2005. An interim mandamus issued in 2012 to restore supply or show cause. The writ was later dismissed for want of prosecution and the interim order discharged, without deciding the clause 8.2(x) claim.

### FACTUAL SUMMARY

On 20 June 2000 the petitioner ice factory was checked and Case No. 242 of 2000 was registered. The petitioner was acquitted on 19 March 2010. Invoking clause 8.2(x)(g)(h) of the U.P. Electricity Supply Code, 2005, it applied for restoration of supply and refund of amounts already deposited. The licensee neither decided the application nor restored supply. On 21 February 2012 the High Court issued an interim mandamus to restore supply within three weeks or show cause, later extended. On 19 September 2018 counsel stated he had no instructions.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::8.2(x)

restoration after acquittal

#### HOLDING

The writ claiming restoration of supply after acquittal, invoking clause 8.2(x)(g)(h) of the U.P. Electricity Supply Code, 2005, was dismissed for want of prosecution when counsel stated he had no instructions; the 21 February 2012 interim mandamus to restore supply or show cause stood discharged, without any merits determination of the clause 8.2(x) claim. ¶ 4

### PRINCIPLE TAGS

**clause-8.2x-acquittal-requires-withdrawal-of-theft-assessment** After acquittal in a 2000 checking case, the consumer sought restoration and refund under clause 8.2(x) of the U.P. Electricity Supply Code, 2005. An interim mandamus issued in 2012 to restore supply or show cause.. ¶ 4

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER ACQUITTAL ENTITLED THE CONSUMER TO RESTORATION OF SUPPLY AND REFUND UNDER CLAUSE 8.2(X)(G)(H)

The 2012 interim mandamus to restore or show cause was never converted into a merits holding; the petition was dismissed for want of prosecution. ¶ 1